

HOUSE No. 540

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to charter school caps.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael S. Day</i>	<i>31st Middlesex</i>	<i>1/17/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/11/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/11/2025</i>

HOUSE No. 540

By Representative Day of Stoneham, a petition (accompanied by bill, House, No. 540) of Michael S. Day, Lindsay N. Sabadosa and James B. Eldridge relative to charter school caps. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to charter school caps.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 89 of chapter 71 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in line 186, the figure “9” and inserting in
3 place thereof the following figure:- 5.

4 SECTION 2. Said section 89 of said chapter 71 of the General Laws, as so appearing, is
5 hereby further amended by striking out, in lines 187 to 191, inclusive, the words “provided,
6 however, that a public school district's total charter tuition payment to commonwealth charter
7 schools shall not exceed 18 per cent of the district's net school spending if the school district
8 qualifies under paragraph (3)”.

9 SECTION 3. Said section 89 of said chapter 71 of the General Laws, as so appearing, is
10 hereby further amended by striking out, in line 194, the figure “9” and inserting in place thereof
11 the following figure:- 5.

12 SECTION 4. Said section 89 of said chapter 71 of the General Laws, as so appearing, is
13 hereby further amended by striking out, in lines 195 to 196, inclusive, the words “or 18 per cent
14 for those districts that qualify under said paragraph (3)”

15 SECTION 5. Said section 89 of said chapter 71 of the General Laws, as so appearing, is
16 hereby further amended by striking out, in lines 218 to 223, inclusive, the words “the school
17 district's total charter school tuition payment to commonwealth charter schools may exceed 9 per
18 cent of the district's net school spending but shall not exceed 18 per cent. For a district qualifying
19 under this paragraph whose charter school tuition payments exceed 9 per cent of the school
20 district's net school spending,”

21 SECTION 6. Said section 89 of said chapter 71 of the General Laws, as so appearing, is
22 hereby further amended by striking out, in lines 275 to 281, inclusive, the words “If a district is
23 no longer in the lowest 10 per cent, the net school spending cap shall be 9 per cent, unless the
24 district net school spending was above 9 per cent in the year prior to moving out of the lowest 10
25 per cent in which case the net school spending cap shall remain at the higher level plus
26 enrollment previous approved by the board.”

27 SECTION 7. Said section 89 of said chapter 71 of the General Laws, as so appearing, is
28 hereby further amended by striking out, in lines 282 to 290, subsection (i)(4) in its entirety.